IN THE INDIANA COURT OF APPEALS
APPELLATE CASE NO. 20A-PC-00686

ERIC SKEENS, Appellant,	)	Huntington Circuit Court
	)	No. 35C01-1101-PC-4
vs.	)	
STATE OF INDIANA Appellee	)	The Honorable Gavin G. Smith, Judge

REPLY BRIEF OF APPELLANT

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Summary of the Argument on Appeal

On numerous occasions, the State incorrectly argues that Skeens did not stake out his arguments in his PCR Petition. Those arguments fail to understand that Skeens supplemented his *pro se* petition with his Amended PCR Petition.

As for the *Brady* violation committed by then-Detective Hunnicutt, the State makes many of Skeens' arguments for him by reciting a laundry list of actions that trial and appellate counsel could have taken regarding Detective Hunnicutt's incorrect testimony and its impact on Skeens' ability to mount a defense.

Additionally, trial counsel's failures concerning discovery of Mother's computers deserve consideration—they were not a fishing expedition, regardless of the State's repetitious use of that phrase. Skeens has specifically identified what he sought, and what it could contain.

Argument

I. Whether the court proceedings violated the Fourteenth Amendment right to Due Process and *Brady v. Maryland* when false testimony by the State's Agent, then-detective Melbourne Hunnicutt, led to a critical and outcome-determinative discovery violation.

The State incorrectly interprets much of Skeens' argument concerning a *Brady* violation. But the State's contentions are misguided, as Skeens amended his Petition for Post-Conviction Relief so that his *Brady* claims were brought "under the umbrella of the Sixth Amendment . . . ." App. Vol. II, pp. 114-15. To the extent the Appellant's Brief did not make that clear, that issue is now resolved.

Therefore, the State's discussion concerning procedural default is inapplicable. This Court can and should consider Skeens' claim concerning structural error, which is appropriate when "the precise effect of the violation cannot be ascertained." *Burden v. State*, 99 N.E.3d 645, 653 (Ind. 2018) (citing *Sullivan v. Louisiana*, 508 U.S. 275 (1993)).

Conclusion

For the foregoing reasons, the convictions should be overturned and the case remanded so that Skeens can have a new and fair trial.

Respectfully submitted,
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Word Count Verification

I, Cynthia M. Carter, verify that the foregoing Reply Brief of Appellant contains no more than 7,000 words.

/s/ Cynthia M. Carter

Certificate of Service

I, Cynthia M. Carter, verify that a true and accurate copy of the foregoing was served upon the Indiana Attorney General, Curtis T. Hill, via the Court's Electronic Filing System this 9th day of October, 2020.

/s/ Cynthia M. Carter